

ELIZABETH II



1966 CHAPTER xxxiii

An Act to empower the London Transport Board to construct works and to acquire lands, to extend the time for the compulsory purchase of certain lands, to confer further powers on the Board; and for other purposes.
[9th August 1966]

WHEREAS by the Transport Act, 1962, the London Transport Board (in this Act referred to as "the Board") were established: 1962 c. 46.

And whereas it is the duty of the Board under the Transport Act, 1962 (inter alia), to provide or secure the provision of an adequate and properly co-ordinated system of passenger transport for the London Passenger Transport Area and to have due regard to efficiency, economy and safety of operation as respects the services and facilities provided by them:

And whereas it is expedient that the period now limited for the compulsory purchase of certain lands should be extended as provided by this Act:

And whereas it is expedient that the Board should be empowered to construct the works authorised by this Act and to acquire the lands referred to in this Act:

And whereas it is expedient that the other powers in this Act contained should be conferred upon the Board and that the other provisions in this Act contained should be enacted:

And whereas plans and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act, and plans of the lands authorised to be acquired or used by this Act, and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands, were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the clerk of the Greater London Council, which plans, sections and book of reference are respectively referred to in this Act as the deposited plans, the deposited sections and the deposited book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

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| Short title. | 1. This Act may be cited as the London Transport Act 1966. |
| Division of Act into Parts. | 2. This Act is divided into Parts as follows:—
Part I.—Preliminary.
Part II.—Works.
Part III.—Lands.
Part IV.—Protective provisions.
Part V.—Miscellaneous. |
| Interpretation. | 3.—(1) In this Act, unless there be something in the subject or context repugnant to such construction, the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have in relation to the relative subject-matter the same respective meanings and— |
| 1845 c. 20. | “the Act of 1845” means the Railways Clauses Consolidation Act, 1845; |
| 1863 c. 92. | “the Act of 1863” means the Railways Clauses Act, 1863; |

PART I
—cont.

- “ the Act of 1960 ” means the British Transport Commission Act, 1960;
- “ the Act of 1963 ” means the London Transport Act, 1963; 1960 c. xlvii.
1963 c. xxiv.
- “ the Act of 1964 ” means the London Transport Act, 1964 c. xxvi.
1964;
- “ the Act of 1965 ” means the London Transport Act 1965 c. xli.
1965;
- “ the Board ” means the London Transport Board;
- “ the council ” means the Greater London Council;
- “ enactment ” includes any public, general, local or private Act and any order or other instrument having the force of an Act;
- “ the limits of deviation ” means the limits of deviation shown on the deposited plans;
- “ the Minister ” means the Minister of Transport;
- “ the tribunal ” means the Lands Tribunal;
- “ underground work ” means such portions of Work No. 1 and any necessary works and conveniences connected therewith as are constructed in tunnel;
- “ Work No. 1 ” means Work No. 1 authorised by this Act;
- “ the works ” means the works authorised by Part II (Works) of this Act.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

(3) All distances and lengths stated in any description of works powers or lands, shall be construed as if the words “ or thereabouts ” were inserted after each such distance and length and distances between points on a railway shall be taken to be measured along the railway.

4. The following Acts and parts of Acts, so far as the same are applicable for the purposes and are not inconsistent with or varied by the provisions of this Act, are incorporated with and form part of this Act, and this Act shall be deemed to be the special Act for the purposes of the said incorporated enactments:—

- (a) the Lands Clauses Acts, except sections 127 to 133 of the Lands Clauses Consolidation Act, 1845; 1845 c. 18.
- (b) the Act of 1845, except sections 7, 8, 9, 17, 19, 20, 22 and 23 thereof; and

PART I
—cont.

- (c) Part I (relating to construction of a railway), except sections 13, 18 and 19, and Part II (relating to extension of time) of the Act of 1863:

Provided that—

- (i) for the purposes of the provisions of the Act of 1845 and the Act of 1863 as incorporated with this Act, the expression “the company” where used in the said incorporated provisions means the Board;
- (ii) the provisions of sections 18 and 21 of the Act of 1845 as incorporated with this Act shall not extend to regulate the relations between the Board and any other person in respect of any matter or thing concerning which those relations are regulated in any respect—

1950 c. 39.

(A) by the provisions of Part II of the Public Utilities Street Works Act, 1950; or

(B) by the provisions of section 42 (For protection of gas, water and electricity undertakers) of the Act of 1963 as incorporated with this Act.

PART II

WORKS

Power to
make works.

5. Subject to the provisions of this Act, the Board may, in the lines or situations shown on the deposited plans and according to the levels shown on the deposited sections, make and maintain the work hereinafter described with all necessary works and conveniences connected therewith:—

In Greater London—

In the city of Westminster and in the London borough of Lambeth—

Work No. 1 A railway (3 miles 567 yards in length), commencing in the city of Westminster by a junction with Work No. 1 authorised by the Act of 1960 at the termination thereof, passing under the river Thames and terminating in the London borough of Lambeth, below a point 110 yards north-west of the junction of Somerleyton Road and Geneva Terrace.

Power to
deviate.

6. In the execution of any, or any part, of the works shown on the deposited plans the Board may deviate from the lines or situations thereof shown on the deposited plans to the extent of the limits of deviation and may deviate vertically from the levels

shown on the deposited sections to any extent not exceeding 10 feet upwards and to such extent downwards as may be found necessary or convenient.

PART II
—cont.

7. Subject to the provisions of this Act the Board may—

Power to
open surface
of streets.

(a) for the purpose of constructing Work No. 1 enter upon, open, break up and interfere with so much of the surface of the following streets in the London borough of Lambeth as is within the limits of deviation:—

Wandsworth Road,
South Lambeth Place,
Bondway,
Binfield Road; and

(b) for the purpose of providing access to Work No. 1 make and maintain permanent openings in the carriage-ways and footways of so much of Wandsworth Road and South Lambeth Place both in the London borough of Lambeth as is within the limits of deviation.

8.—(1) Subject to the provisions of this Act (and in so far as the same are shown on the deposited plans in the lines or situations as shown) the Board may in the London borough of Haringey make and maintain the work described in this section with all necessary works and conveniences connected therewith and may exercise the powers hereinafter mentioned:—

They may stop up and discontinue so much of the existing footpath leading from Carbuncle Passage Way to the Broad Mead Recreation Ground and crossing the railway between Tottenham Station and Northumberland Park Station by means of a footbridge as lies between the points marked “ A ”, “ B ” and “ C ” on the deposited plans and may substitute therefor a new footpath and footbridge between the points marked “ A ”, “ D ” and “ C ” on the deposited plans.

(2) The stopping up of the portion of the existing footpath referred to in subsection (1) of this section shall not take place until the road authority are satisfied that the portion of new footpath has been completed in accordance with their reasonable requirements and is open for public use or, in case of any difference between the Board and the road authority as to whether the said requirements have been complied with or as to their reasonableness, until the matter in dispute has been referred to and determined by the Minister and he has certified that the portion of new footpath has been completed in accordance with his determination.

PART II
—cont.

(3) Before applying to the Minister for his determination, the Board shall give to the road authority of the London borough in which the existing footpath is situated seven days' notice in writing of their intention to apply for the same.

(4) As from the completion to the satisfaction of the road authority of the portion of new footpath, or as from the date of the said certificate (as the case may be), all rights of way over or along the portion of the existing footpath authorised to be stopped up and diverted shall be extinguished and the Board may, subject to the provisions of the Act of 1845 with respect to mines lying under or near the railway, appropriate without making any payment therefor and use for the purposes of their undertaking the site of the portion of footpath stopped up as far as the same is bounded on both sides by lands of the Board.

(5) Any person who suffers loss by the extinguishment of any private right under this section shall be entitled to be paid by the Board compensation to be determined in case of dispute under and in accordance with the Lands Clauses Acts.

(6) Subject to the provisions of section 7 (Repair of roads where level not permanently altered) of the Act of 1963, as incorporated with this Act, the portion of new footpath referred to in subsection (1) of this section made, diverted or altered under the authority of this section (except the structure carrying such footpath over any railway of the Board which structure shall unless otherwise agreed be maintained by and at the expense of the Board) shall when completed, unless otherwise agreed, be maintained by and at the expense of the persons liable to maintain footpaths of the same nature and in the same London borough as the portion of footpath so made, diverted or altered.

Incorporation
of provisions
of Acts of
1963 and
1965 relating
to works.

9. The following provisions of the undermentioned Acts are incorporated with and form part of this Part of this Act:—

Act of 1963—

Section 7 (Repair of roads where level not permanently altered);

Section 8 (General provisions as to mode of construction of Work No. 1);

Section 9 (Plans, etc., to be approved by Minister before Work No. 1 commenced);

Section 10 (Provisions as to use of electrical power);

Section 11 (Compensation for damage by working);

Section 15 (Power to make trial holes);

Section 16 (Use of sewers, etc., for removing water).

Act of 1965—

PART II
—cont.

Section 10 (Underpinning of houses near works):

Provided that for the purposes of this Act the references in the said sections 8, 9 and 10 of the Act of 1963, as so incorporated, to Work No. 1 authorised by that Act, shall be construed as references to Work No. 1 authorised by this Act and the references in the said section 11 of the Act of 1963 to the said Work No. 1 shall be construed as references to underground work:

Provided also that the expression “river board” where used in the said section 16 of the Act of 1963, as so incorporated, shall mean a river authority established by an order under Part II of the Water Resources Act, 1963, the Conservators of the River Thames or the Lee Conservancy Catchment Board (as the case may be) and the definition of “river board” in subsection (5) of the said section 16 shall be construed accordingly:

Provided also that nothing in the provisions of the said section 16, as so incorporated, shall be deemed to authorise the Board to abstract water from any underground strata except for the purpose of preventing interference with any engineering, building or other operations or of preventing damage to works resulting from any such operations.

PART III

LANDS

10.—(1) Subject to the provisions of this Act, the Board may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of the works or for any purpose connected with or ancillary to their undertaking.

(2) Without prejudice to the generality of the powers conferred upon the Board by subsection (1) of this section, the Board may, subject to the provisions of this Act, enter upon, take and use the lands delineated on the deposited plans and described in the deposited book of reference and therein numbered 1 in the London borough of Haringey for the purpose of providing the new footpath and footbridge authorised by section 8 (Further works and powers) of this Act.

(3) Subject to the provisions of this Act, the Board may enter upon, use and appropriate so much of the subsoil and under-surface of any public street, road, footway or place delineated on the deposited plans and described in the deposited book of

PART. III
—cont.

reference as shall be necessary for the purposes mentioned in subsection (1) of this section without being required to purchase the same or any easement therein or thereunder or to make any payment therefor.

Power to
acquire
subsoil or
easements
only in
certain cases.

11.—(1) Notwithstanding anything in this Act, the Board may, for the purposes of constructing, maintaining, protecting, renewing and using the works, enter upon, take and use so much of the subsoil and under-surface of or may acquire such easements or rights as they may require in, under or over—

(a) any railway, river, canal, navigation, watercourse, aqueduct, drain, dyke or sewer; or

(b) any of the lands described in Schedule 1 to this Act;

without being obliged or compellable to acquire any greater interest in, under or over the same respectively, and may give notice to treat in respect of such entry, taking and using and, in respect of the acquisition of any such easements or rights, describing the nature thereof and (subject to the foregoing provisions of this section and to the other provisions of this Act) the provisions of the Lands Clauses Acts shall extend and apply in relation to the acquisition of such easements or rights as if they were lands within the meaning of those Acts.

(2) (a) If, in any case where the Board enter upon, take and use the subsoil and under-surface of, or require an easement or right in or under, any of the lands described in the said schedule, they also require to take, use and pull down or open any cellar, vault, arch or other construction forming part of any such lands, they may enter upon, take and use such cellar, vault, arch or other construction for the purposes of the works and (subject to the provisions of this Act) the provisions of the Lands Clauses Acts shall extend and apply in relation to the purchase thereof as if such cellar, vault, arch or other construction were lands within the meaning of those Acts.

(b) Section 12 (Acquisition of part only of certain properties) of the Act of 1964, as incorporated with this Act, shall apply in respect of the acquisition by the Board under this subsection of any cellar, vault, arch or other construction as if the same were a part of land to which that section applies.

Subsoil or
easements
only to be
acquired
under certain
lands.

12.—(1) In this section “the specified lands” means the lands referred to in Schedule 2 to this Act.

(2) The Board shall not acquire compulsorily, under the powers of this Act, any part of the surface of the specified lands, but they may enter upon, take and use within the limits of lateral

and vertical deviation prescribed by this Act in respect of Work No. 1 so much of the subsoil and under-surface of the specified lands as they may require for the purpose of constructing, maintaining, protecting, renewing and using Work No. 1, and any necessary works and conveniences connected therewith, or may acquire such easements and rights under the specified lands as they may require for the said purposes without in either case being obliged or compellable to acquire any greater interest in, under or over the specified lands, and may give notice to treat in respect of such entry, taking and using and the acquisition of such easements or rights describing the nature thereof and (subject to the foregoing provisions of this section and to the other provisions of this Act) the provisions of the Lands Clauses Acts shall extend and apply in relation to the acquisition of such easements or rights as if they were lands within the meaning of those Acts.

13. The Board shall not be required to purchase any part of the surface of, or any easement in, any street in which they are authorised by this Act to make and maintain any permanent opening, or to make any payment in respect of any such permanent opening, or for breaking up or interfering with the surface of any such street. As to use of streets for permanent openings.

14. At any time after serving a notice to treat in respect of any land that may be acquired compulsorily under this Act, but not less than three months or, in the case of the subsoil or under-surface of any such land, or any easement or right that may be acquired compulsorily under this Act in, under or over any land, one month, after giving the owner and occupier of the land notice in writing of their intention to exercise the powers of this section, the Board may enter on and take possession of the land, or enter on the land in respect of which the easement or right is to be acquired (as the case may be), or such part thereof as is specified in the last-mentioned notice, without previous consent and without compliance with sections 84 to 90 of the Lands Clauses Consolidation Act, 1845: Power to expedite entry.

1845 c. 18.

Provided that the Board shall pay the like compensation for land or the subsoil or under-surface of land of which possession is taken under this section, or for any easement or right acquired, and the like interest on the compensation awarded, as would have been payable if the provisions of those sections had been complied with.

15.—(1) This section applies to the lands numbered on the Temporary deposited plans 55 in the London borough of Lambeth (hereafter in this section referred to as “the said lands”). Temporary possession of land.

PART III
—cont.

(2) The Board may, for the purpose of enabling them to construct the works, enter upon and take possession temporarily of the said lands after giving to the Lambeth Borough Council as owner and occupier thereof not less than one month's previous notice in writing and may remove any structures thereon and may construct temporary works, shafts and structures thereon for the aforesaid purpose :

Provided that the Board—

- (a) shall not without the agreement of the Lambeth Borough Council remain in possession of the said lands under the powers of this section after a period of four years from the date of entry thereon; and
- (b) except in pursuance of the powers of section 11 (Power to acquire subsoil or easements only in certain cases) of this Act shall not be empowered to purchase compulsorily the said lands; and
- (c) shall not be required to purchase the said lands.

(3) Before relinquishing possession of the said lands the Board shall remove all works and structures erected by them thereon and shall reinstate the said lands to the reasonable satisfaction of the Lambeth Borough Council.

Period for compulsory purchase of lands and easements.

16. The powers of the Board for the compulsory purchase of the lands and easements which they are authorised by this Act to acquire, shall cease on 31st December, 1972.

Incorporation of provisions of Acts of 1963, 1964 and 1965 relating to lands.

17. The following provisions of the undermentioned Acts are incorporated with and form part of this Part of this Act:—

Act of 1963—

Section 21 (Power to enter for survey or valuation);

Section 26 (Grant of easements by persons under disability);

Section 28 (As to cellars under streets not referenced).

Act of 1964—

Section 12 (Acquisition of part only of certain properties);

Section 13 (Disregard of recent improvements and interests);

Section 14 (Extinction of private rights of way).

Act of 1965—

PART III
—cont.

Section 13 (Correction of errors in deposited plans and book of reference):

Provided that the provisions of the said section 13 of the Act of 1964, as so incorporated, shall have effect as if for the reference therein to 5th December, 1963, there was substituted a reference to 5th December, 1965.

PART IV

PROTECTIVE PROVISIONS

18. The following provisions of the undermentioned Acts are incorporated with and form part of this Part of this Act:—

Incorporation
of protective
provisions of
Acts of 1963
and 1965.

Act of 1963—

Section 31 (For protection of Postmaster General);

Subsections (1) and (3) of section 32 (For further protection of Postmaster General);

Section 42 (For protection of gas, water and electricity undertakers).

Act of 1965—

Section 25 (As to works within Metropolitan Police District);

Section 27 (For protection of sewers of Greater London Council);

Section 28 (As to metropolitan roads and road traffic, etc.);

Section 30 (For protection of port authority and river users);

Section 31 (Marking of works in river Thames):

Provided that—

- (i) the provisions of the said section 31 of the Act of 1963, as so incorporated, shall have effect as if for the references therein to Work No. 1 authorised by the Act of 1963 there were substituted references to Work No. 1 authorised by this Act;
- (ii) the provisions of the said section 27 of the Act of 1965, as so incorporated, shall have effect as if for the reference to “the said works” in paragraph (2) thereof there were substituted a reference to “the specified works” and as if for the reference in paragraph (7) thereof to section 11 (Incorporation of provisions of Act of 1963 relating to

PART IV
—cont.

- works) there were substituted a reference to section 9 (Incorporation of provisions of Acts of 1963 and 1965 relating to works) of this Act;
- (iii) the provisions of the said section 28 of the Act of 1965 as so incorporated, shall have effect as if—
- (a) in subsection (3) the words “ (except in the case of Work No. 1) ” were omitted and there were substituted therefor the words “ (except in the case of any permanent opening authorised by this Act and in other cases except with such consent as aforesaid) ”;
 - (b) in subsection (6) after the word “ Except ” at the commencement thereof there were inserted the words “ as by this Act expressly authorised or ”;
 - (c) in subsection (7) the proviso at the end thereof were omitted;
- (iv) the provisions of the said sections 30 and 31 of the Act of 1965, as so incorporated, shall have effect as if—
- (a) in section 30, for the references to Work No. 4 authorised by the Act of 1965 there were substituted references to Work No. 1 authorised by this Act and for the references to the Port of London Acts, 1920 to 1964, there were substituted references to the Port of London Acts, 1920 to 1965; and
 - (b) in section 31, subsection (2) were omitted and there were substituted therefor—
“ (2) If the Board fail to comply with any provision of this section they shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.”

Crown
rights.

19.—(1) Nothing in this Act affects prejudicially any estate, right, power, privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing in this Act authorises the Board to take, use or in any manner interfere with any land or hereditaments or any rights of whatsoever description—

- (a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose; or
- (b) belonging to a government department or held in trust for Her Majesty for the purposes of a government department without the consent in writing of that government department.

(2) Nothing in this section shall prejudice or affect any statutory powers of the Board to carry out any works by reason only that such works involve or are likely to involve an alteration in any telegraphic line of the Postmaster General in relation to which paragraphs (1) to (8) of section 7 of the Telegraph Act, 1878 c. 76. 1878, apply.

20.—(1) Section 5 of the Underground Works (London) Act, 1956, shall not apply to any subsidence resulting from the execution of any of the works or from anything done in maintaining any of the works or from any failure to maintain them and in the event of any such subsidence the Board shall be liable to the like extent and to the same persons as the Minister would have been liable but for this subsection: For protection of Minister of Public Building and Works. 1956 c. 59.

Provided that any compensation paid by the Board under the Lands Clauses Acts in respect of any such subsidence shall be set off against any liability of the Board under this subsection.

(2) Nothing in this Act shall have the effect of adding to the obligations or liabilities of the Minister pursuant to the agreements mentioned in section 7 of the Underground Works (London) Act, 1956. In particular and without prejudice to the generality of the immediately foregoing provision, clauses 11 and 12 of the Agreement dated 18th December, 1942, referred to in the said section 7 shall not apply to the works or to any property of the Board used or provided in connection therewith.

(3) Any difference as to whether subsidence has resulted from the execution of any of the works authorised by this Act or from anything done in maintaining any of the works or from any failure to maintain them shall be settled by arbitration.

(4) In this section “the Minister” means the Minister of Public Building and Works.

21. For the protection of the lord mayor, aldermen and citizens of the city of Westminster and of the mayor, aldermen and burgesses of the London borough of Lambeth (each of whom is in this section referred to as “the corporation”) the following provisions shall, unless otherwise agreed in writing between the Board and the corporation, apply and have effect with reference to the exercise of the powers of this Act relating to the works to which this section applies:— For protection of Westminster and Lambeth Corporations.

(1) (a) In this section “highway” means a highway vested in or repairable or maintained by the corporation other than a highway which is for the time being a metropolitan road or a highway for which, under the London Government Act, 1963, the Minister is the highway authority; 1963 c. 33.

PART IV
—cont.

- (b) The works to which this section applies are Work No. 1 and the works and conveniences connected therewith authorised by this Act:
- (2) Wherever in this section provision is made with respect to the consent of the corporation, such consent shall be in writing and may be given under the hand of the town clerk subject to such reasonable terms and conditions as the corporation may require, but shall not be unreasonably withheld:
- (3) Before commencing to construct any part of the works to which this section applies which will involve interference with a highway, the Board shall consult the corporation as to the time when such part shall be commenced, and as to the extent of the surface of the highway which it may be reasonably necessary for the Board to occupy in the construction of such part, and as to the conditions under which such part shall be constructed so as to reduce so far as possible inconvenience to the public and to ensure the safety of the public, and such part shall not be constructed and the surface of the highway shall not be occupied by the Board except at the time, to the extent and in accordance with conditions agreed between the Board and the corporation or, in default of agreement, settled by arbitration:
- Provided that any condition agreed or settled under this paragraph shall not conflict with any condition laid down by the council in regard to traffic management:
- (4) In the construction of any part of the works to which this section applies under a highway, no part thereof shall (except with the consent of the corporation) be so constructed as to interfere with the provision of proper means of drainage of the surface of any highway nor (except in the case of any permanent opening authorised by this Act and in other cases except with such consent as aforesaid) be nearer than two feet six inches to the surface of any highway:
- (5) At least fourteen days before commencing any vertical borings from the surface of any part of any highway the Board shall serve notice in writing on the corporation of their intention to commence the same, and such notice shall describe the place or places at which such borings are intended to be made, and if within fourteen days after the receipt of such notice any objection is made by the corporation, the matter shall (unless otherwise agreed) be settled by arbitration before the boring is commenced, but if no such objection is made the said borings may be proceeded with:

- (6) Except as by this Act expressly authorised or with the consent of the corporation the Board shall not open or make any permanent openings or any ventilators, air shafts or other similar openings in, or erect or construct any structure or erection above, the surface, carriageway or footway of any highway:
- (7) The works to which this section applies so far as they involve any serious interference with the movement of traffic in any highway shall, after the commencement thereof, be carried on so far as reasonably practicable, as expeditiously as possible, and the Board shall take all such steps as may be reasonably necessary to reduce so far as possible the period of such interference:
- (8) The Board shall secure that so much of the works to which this section applies as is constructed under or so as to affect any highway shall be designed, constructed and maintained so as to carry the appropriate loading recommended at the time of construction of such works by the Minister for highway bridges and the Board shall indemnify the corporation against, and make good to the corporation, all expenses which the corporation may reasonably incur or be put to in the maintenance or repair of any highway or any tunnels, sewers, drains or apparatus therein by reason of any non-compliance by the Board with the provisions of this paragraph:
- (9) It shall be lawful for the engineer or surveyor or other officer of the corporation duly appointed for the purpose at all reasonable times to enter upon and inspect any part of the works to which this section applies in, under or affecting any highway or which may affect any property of the corporation during the execution thereof, and the Board shall give to such engineer or surveyor or officer all reasonable facilities for such inspection and if he shall be of opinion that the construction of such works is attended with danger to any highway or to any sanitary convenience, refuge, sewer, drain, lamp column, traffic sign and apparatus connected therewith or work belonging to or under the jurisdiction or control of the corporation, the Board shall adopt such measures and precautions as may be reasonably necessary for the purpose of preventing any damage or injury thereto:
- (10) The Board shall not alter, disturb or in any way interfere with any sanitary convenience, refuge, sewer, drain, lamp column, traffic sign or apparatus connected therewith, or other property or work of the corporation

PART IV
—cont.

or under the control of or repairable by the corporation or the access thereto, without the consent of the corporation and any alteration, diversion, replacement or reconstruction of any such sanitary convenience, refuge, sewer, drain, lamp column, traffic sign or apparatus connected therewith or other property or work which may be necessary shall be made by the corporation or the Board as the corporation shall think fit, and any costs and expenses reasonably incurred by the corporation in so doing shall be repaid to the corporation by the Board:

- (11) The Board shall not remove any soil or material from any highway except such as must be excavated in the carrying out of the works to which this section applies:
- (12) If any extra expense be reasonably incurred by the corporation for the repair of any highway by reason of the diversion thereto of traffic from a road of a higher classification in consequence of the making or construction of the works to which this section applies, the Board shall repay the amount of such reasonable expense to the corporation:
- (13) The Board shall not, except with the consent of the corporation, deposit any soil, subsoil or materials or stand any vehicle or plant on any highway so as to obstruct the use of such highway by any person or, except with the like consent, deposit any soil, subsoil, or materials on any such highway except within a hoarding:
- (14) All reasonable costs, charges and expenses incurred by the corporation in removing any soil deposited on any highway in contravention of this section shall be a debt due to the corporation and shall be paid by the Board to the corporation:
- (15) Where any part of any highway shall have been temporarily broken up or disturbed by the Board the Board shall make good the subsoil foundations and surface of such part of the highway to the reasonable satisfaction of the corporation:

Provided that the reinstatement of such part of the highway shall, in the first instance, be of a temporary nature only, and the permanent reinstatement thereof shall be carried out by the corporation as soon as practicable after the completion of the temporary reinstatement, and the reasonable cost incurred by the corporation in so doing shall be repaid by the Board to the corporation:

- (16) It shall not be lawful for the Board to place any hoardings on any part of any highway except for such period as may be necessary and then only in such manner as shall be reasonably necessary, and the provisions of the Highways Act, 1959, relating to hoardings shall apply to any hoarding erected on any part of any highway and for the purposes of the application of section 147 of the said Act of 1959 any such hoarding shall be deemed to have been erected in compliance with subsection (1) of that section: 1959 c. 25.
- (17) The Board shall make compensation to the corporation for any subsidence of, or damage to, any highway or any sanitary convenience, refuge, sewer, drain, lamp column, traffic sign and apparatus connected therewith, or other property or work of the corporation, or under their control or repairable by them, which may be caused by, or in consequence of, any act or default of the Board, their contractors, servants or agents and whether such subsidence or damage shall happen during the construction of the works to which this section applies or at any time thereafter:
- (18) Within three months after the completion of any of the works to which this section applies or such longer period as the corporation may agree, the Board shall remove or, to the reasonable satisfaction of the corporation, demolish or otherwise dispose of all temporary buildings and structures erected for the purposes of, or in connection with the construction of that work, and shall remove all surplus materials, plant, machinery and appliances provided or approved in connection therewith and shall so far as is reasonably practicable to the like satisfaction restore and make good the surface of the ground on which any temporary buildings and structures or any surplus materials, plant, machinery and appliances as aforesaid have been placed or which may have been occupied for the purpose of or in connection with that work:
- (19) As soon as reasonably practicable after the completion of any part of the works to which this section applies, the Board shall furnish the corporation with a plan and section showing the position and level of such part of the works as constructed:
- (20) Any difference arising between the Board and the corporation under this section shall be settled by arbitration.

PART IV

—cont.

For protection
of British
Railways
Board.

22. For the protection of the British Railways Board (in this section referred to as “the railways board”) the following provisions shall, unless otherwise agreed in writing between the Board and the railways board, apply and have effect:—

(1) In this section—

“railway property” means any railway of the railways board and any works connected therewith for the maintenance or operation of which the railways board are responsible and includes any lands held or used by the railways board for the purposes of such railway or works;

“the works” means so much of the works authorised by this Act as may be situated upon, across, under or over or may in any way affect railway property and includes the construction and reconstruction of such works;

“the engineer” means an engineer to be appointed by the railways board;

“plans” includes sections, drawings and particulars:

(2) The provisions of paragraphs (3) to (15) inclusive of section 41 (For protection of British Railways Board) of the Act of 1963 shall extend and apply for the protection of the railways board in relation to the works as if those provisions were with any necessary modifications re-enacted in this section and as if—

(a) for the references therein to “the works” there were substituted references to “the works” as defined by paragraph (1) of this section and as if that expression included the maintenance and repair of the works for the purposes of the application of paragraphs (7), (11) and (13) of the said section 41;

(b) for the reference therein to the Act of 1963 there were substituted a reference to this Act;

(c) for the reference therein to section 15 (Power to make trial holes) of the Act of 1963 there were substituted a reference to that section as incorporated by section 9 (Incorporation of provisions of Acts of 1963 and 1965 relating to works) of this Act.

23. For the protection of the Lee Conservancy Catchment Board (in this section referred to as "the catchment board") the following provisions shall, unless otherwise agreed in writing between the Board and the catchment board, apply and have effect:—

PART IV
—cont.

For protection
of Lee
Conservancy
Catchment
Board.

(1) In this section—

"the brook" means the Moselle Brook or Carbuncle Ditch;

"the culvert" means the culvert constructed by the catchment board at the eastern termination of Carbuncle Passageway in the London borough of Haringey as a relief channel for the brook;

"the engineer" means the engineer to the catchment board;

"the footbridge" means the new footpath and footbridge in the London borough of Haringey between the points marked "A", "D" and "C" on the deposited plans to be substituted for the footbridge between the points marked "A", "B" and "C" on the deposited plans in pursuance of section 8 (Further works and powers) of this Act;

"the prescribed distance" means a distance of 10 yards from the northerly limits of land to be acquired for the purpose of the work described in the said section 8:

(2) The Board shall not under the powers of this Act enter upon, take or use the culvert:

(3) (a) Not less than twenty-eight days before commencing to construct or repair any part of the footbridge within the prescribed distance the Board shall submit to the catchment board particulars, plans, sections and working drawings thereof for their reasonable approval;

(b) If the catchment board shall not within twenty-eight days after the receipt by them of any such particulars, plans, sections and working drawings signify to the Board in writing their approval or disapproval thereof they shall be deemed to have approved thereof;

(c) Such part of the footbridge shall not be constructed or repaired otherwise than in accordance with—

(i) such particulars, plans, sections and working drawings as shall be approved by the catchment board or if such approval be withheld as shall be settled by arbitration; and

PART IV
—cont.

- (ii) a method of working approved by the engineer;
and shall be constructed and repaired to the reasonable satisfaction of the catchment board;
- (d) The Board shall at all reasonable times afford to the engineer or his duly authorised representative access to such part of the footbridge for the purpose of inspection and shall comply with any reasonable directions given by the engineer or such representative in reference thereto:
- (4) Except in cases of emergency the Board shall give seven days' notice in writing to the catchment board before commencing to construct or to repair or renew any part of the footbridge within the prescribed distance:
- (5) In the construction, repair, maintenance and user of the footbridge the Board shall take all reasonable precautions to prevent interference with the flow of water in, into, through or out of the brook or the culvert or with the efficiency of the brook or the culvert and to prevent the deposit from the footbridge of any solid matter in the brook:
- (6) If, by reason of the construction, repair or maintenance of the footbridge or of the failure thereof or of the failure to maintain the same, the channel or banks of the brook or the culvert shall at any time be injured or damaged, such injury or damage shall forthwith be made good by the Board to the reasonable satisfaction of the engineer and if the Board fail so to do the catchment board may make good the same and recover the reasonable cost thereof from the Board:
- (7) (a) Where any lands acquired by the Board under this Act abut upon or are intersected by the brook or the culvert the catchment board and their officers, servants, workmen, contractors and agents shall be entitled at all times to have access with or without vehicles, mechanical plant or equipment to the brook or the culvert to pass and re-pass along the banks thereof and use such banks for that purpose and for the exercise and discharge of their functions;
- (b) The Board shall from time to time give to the catchment board and their officers, servants, workmen, contractors and agents such facilities as may be reasonably necessary for the purposes of this paragraph:

- (8) The Board shall indemnify and hold harmless the catchment board from all demands, costs, expenses, damages or loss which may be made on or against them or which they may incur or have to pay or which they may sustain in consequence of the construction, use, maintenance, renewal or alteration of the footbridge or of the failure or want of repair thereof or any subsidence caused by the construction thereof or in consequence of any act or omission of the Board, their contractors, agents, workmen or servants:

PART IV
—cont.

- (9) Any difference arising between the Board and the catchment board under this section shall be settled by arbitration.

PART V

MISCELLANEOUS

24. Notwithstanding anything contained in any other Act, the Greater London Council may convey and grant to the Board such parts of the Victoria Embankment Gardens in the city of Westminster or the subsoil thereof as are occupied by the railway and works of the Board and are shown coloured pink and yellow on the plan signed by the clerk to the council on behalf of the Greater London Council and the solicitor to the Board on behalf of the Board and may receive any purchase money or payment by the Board to the Greater London Council therefor.

As to lands
at Charing
Cross.

25.—(1) The period now limited by the Act of 1963 for the compulsory purchase of the lands authorised to be acquired by section 18 (Power to acquire lands) of the Act of 1963 for the purposes of Works Nos. 3 and 4 authorised by Part II (Works) of the Act of 1963 is hereby extended until 31st December, 1969.

Extension of
time.

(2) In this section the word “lands” includes any easements or rights in, under or over land authorised to be acquired by the Act of 1963.

26.—(1) In this section—

“the enabling Act” means the Act of 1963;

“the land” means any land which is for the time being authorised to be acquired compulsorily by the Board by the enabling Act not being land referred to in subsection (4) of this section;

Powers to
owners and
lessees to give
notice as to
purchase of
lands.

PART V
—cont.

“lessee” means a lessee under a lease having a period of not less than twenty-one years to run at the date of his notice under subsection (2) of this section.

(2) If at any time after 31st December, 1966, any person being the owner or lessee of any of the land shall give notice in writing to the Board of his desire that his interest in any part of the land specified in the notice shall be acquired as soon as may be the Board shall within a period of three months after the receipt of such notice—

- (a) enter into a contract with such person for the acquisition of his interest in the land or such part thereof as may be specified in the contract; or
- (b) serve a notice to treat for the compulsory acquisition of the interest of such person in the land specified in his notice or in such part thereof as may be required by the Board; or
- (c) serve on such person notice in writing of their intention not to proceed with the purchase of the interest of such person in the land specified in his notice.

(3) Where notice is given under the last foregoing subsection by an owner or lessee of land specified in the notice then—

(a) if the Board—

- (i) fail to comply with that subsection; or
- (ii) withdraw in pursuance of any statutory provision a notice to treat served on him in compliance with paragraph (b) of that subsection; or
- (iii) serve notice on him in compliance with paragraph (c) of that subsection;

the powers conferred by the enabling Act for the compulsory purchase of his interest in the land so specified shall cease;

(b) if his interest in part only of the land so specified is acquired in pursuance of such a notice to treat the powers conferred by the enabling Act for the compulsory purchase of his interest in the remainder of the land so specified shall cease.

(4) This section shall not apply to land which the Board are by the enabling Act authorised to acquire for the purposes of a work which is shown on the sections deposited in respect of the Bill for the enabling Act as intended to be constructed under the surface of such land.

27. The provisions of the Town and Country Planning Act, 1962, and any restrictions or powers thereby imposed or conferred, in relation to land shall apply and may be exercised in relation to any land notwithstanding that the development thereof is, or may be, authorised or regulated by or under this Act.

PART V
—cont.
Saving for town and country planning.
1962 c. 38.

28. Where under this Act any difference (other than a difference to which the provisions of the Lands Clauses Acts apply) is to be referred to or settled by arbitration, then, unless otherwise provided, such difference shall be referred to and settled by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed, on the application of either party (after notice in writing to the other), by the President of the Institution of Civil Engineers.

Arbitration.

29. All costs, charges and expenses of and incident to the preparing for, obtaining and passing of this Act or otherwise in relation thereto, shall be paid by the Board and may in whole or in part be defrayed out of revenue.

Costs of Act.

SCHEDULES

SCHEDULE 1

Section 11.

DESCRIBING PROPERTIES IN RESPECT OF WHICH SUBSOIL OR EASEMENTS MAY BE TAKEN AS PROVIDED BY SECTION 11 (POWER TO ACQUIRE SUBSOIL OR EASEMENTS ONLY IN CERTAIN CASES) OF THIS ACT

Area (1)	No. on deposited plans (2)
WORK No. 1	
City of Westminster ...	278 to 284, 290, 471.
London borough of Lambeth ...	3 to 6, 8, 14, 55, 105 to 107, 191, 192, 276, 277A, 278, 310 to 319, 345, 635, 636, 664, 665, 667, 732 to 737, 750, 888 to 906.

SCHEDULE 2

Section 12.

LANDS REFERRED TO IN SECTION 12 (SUBSOIL OR EASEMENTS ONLY TO BE ACQUIRED UNDER CERTAIN LANDS) OF THIS ACT

Area (1)	No. on deposited plans (2)
WORK No. 1	
City of Westminster ...	3, 5 to 58, 61 to 91, 93 to 99, 101 to 112, 114 to 135, 137 to 164, 166 to 191, 193 to 228, 231 to 268, 270 to 277, 285 to 288, 291 to 297, 299 to 342, 344 to 354, 356 to 399, 401 to 417, 419 to 426, 429 to 437, 440 to 470, 473 to 527.
London borough of Lambeth ...	1, 2, 10 to 13, 15, 17, 19 to 32, 34 to 53, 57 to 80, 82 to 104, 109 to 133, 136, 137, 139 to 184, 184A, 185 to 189, 193, 195 to 243, 245 to 253, 256 to 265, 268 to 273, 275, 277, 279, 281 to 291, 293 to 305, 307, 308, 321 to 344, 346 to 366, 368 to 379, 379A, 380 to 413, 415 to 438, 440 to 464, 466 to 479, 481 to 498, 500 to 522, 524 to 538, 540 to 613, 615 to 634, 637 to 642, 645 to 663, 666, 668 to 677, 679 to 718, 720, 721, 721A, 722 to 725, 727, 729, 731, 738, 739, 741 to 749, 751, 752, 752A, 752B, 752C, 753 to 755, 757 to 789, 789A, 791 to 800, 802 to 810, 810A, 811 to 832, 834 to 887, 907 to 916, 918 to 929, 931 to 962.

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CHAPTER xxxiii

ARRANGEMENT OF SECTIONS

PART I

Section

PRELIMINARY

1. Short title.
2. Division of Act into Parts.
3. Interpretation.
4. Incorporation of general Acts.

PART II

WORKS

5. Power to make works.
6. Power to deviate.
7. Power to open surface of streets.
8. Further works and powers.
9. Incorporation of provisions of Acts of 1963 and 1965 relating to works.

PART III

Section

LANDS

10. Power to acquire lands.
11. Power to acquire subsoil or easements only in certain cases.
12. Subsoil or easements only to be acquired under certain lands.
13. As to use of streets for permanent openings.
14. Power to expedite entry.
15. Temporary possession of land.
16. Period for compulsory purchase of lands and easements.
17. Incorporation of provisions of Acts of 1963, 1964 and 1965 relating to lands.

PART IV

PROTECTIVE PROVISIONS

18. Incorporation of protective provisions of Acts of 1963 and 1965.
19. Crown rights.
20. For protection of Minister of Public Building and Works.
21. For protection of Westminster and Lambeth corporations.
22. For protection of British Railways Board.
23. For protection of Lee Conservancy Catchment Board.

PART V

MISCELLANEOUS

24. As to lands at Charing Cross.
25. Extension of time.
26. Powers to owners and lessees to give notice as to purchase of lands.
27. Saving for town and country planning.
28. Arbitration.
29. Costs of Act.

SCHEDULES:

Schedule 1—Describing properties in respect of which subsoil or easements may be taken as provided by section 11 (Power to acquire subsoil or easements only in certain cases) of this Act.

Schedule 2—Lands referred to in section 12 (Subsoil or easements only to be acquired under certain lands) of this Act.